

**FIRST ENDORSEMENT**

Chief Prosecutor, APU, Andre Applewhite, Civilian Complaint Review Board to Interim Deputy Commissioner Nancy Slater, Department Advocate's Office, January 10, 2025. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-24937 against Police Officer Jamal Moye, Tax Registry No. 958958. The case was conferenced on January 2, 2025, before Assistant Deputy Commissioner of Trials Jeffrey Adler who approved the dismissal of the charges in return for the recommended negotiated penalty of Departmental Imposed Training

*Andre Applewhite*

---

Andre Applewhite  
Chief Prosecutor, APU  
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

|                                |
|--------------------------------|
| CASE NO.<br>C-031968           |
| BOOK & PAGE NO.<br>Page 1 of 1 |
| PERSONNEL ORDER NO.            |

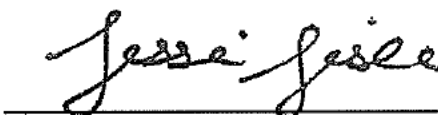
|                          |                            |                      |                              |                      |
|--------------------------|----------------------------|----------------------|------------------------------|----------------------|
| RANK/TITLE<br>PO         | SURNAME,<br>MOYE           | FIRST<br>JAMAL       | M.I.                         | COMMAND<br>073       |
| SHIELD NO.<br>20924      | TAX REGISTRY NO.<br>958958 | SOCIAL SECURITY NO.  | DATE APPOINTED<br>07/08/2015 |                      |
| RANK/NAME OF COMPLAINANT |                            |                      |                              | COMMAND              |
| DATE OF CHARGES          |                            | DATE TRIAL COMMENCED |                              | DATE TRIAL CONCLUDED |
| TRIAL COMMISSIONER       |                            |                      |                              |                      |

| SPECIFICATION                                                                                                                                                                                                                                                           | DISPOSITION | RECOMMENDED PENALTY<br>PLEA [X] TRIAL [ ]                                                   |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|---------------------------------------------------------------------------------------------|
| 1. Said Police Officer Jamal Moyer, while assigned to the 73rd Precinct, on February 25, 2020, at approximately 2050 hours, in the vicinity of 30 Seventh Avenue, New York County, failed to provide his name and shield number to § 87(2)(b) upon Mr. Stora's request. | DISMISSED   | TRAINING Respondent will comply with and complete re-training prescribed by the Department. |

  
FIRST DEPUTY COMMISSIONER

1/31/25  
DATE

**POLICE COMMISSIONER'S APPROVAL**☒ Approved☐ Disapproved☐ Other Action (Describe)

  
POLICE COMMISSIONER

2/28/25  
DATE

**THIRD ENDORSEMENT**

First Deputy Commissioner to Police Commissioner, January 31, 2025. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2022-24937 (PODS Case #C-031968; CCRB Case #202001952) against Police Officer Jamal Moye, Tax #958958, with the recommendation that the Charges and Specifications against Police Officer Moye be dismissed and that Police Officer Moye receive Training. Assistant Deputy Commissioner, Trials Jeff S. Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur.

It must be noted that the undersigned is acutely aware of the ramifications that the underlying negotiated settlement, if approved, may pose to the Department and its members. On February 25, 2020, Police Officer Moye was off-duty and *working in full uniform* a Paid Detail at a hospital in Manhattan, New York. On the night of the incident, Police Officer Moye removed from the hospital an individual who refused to do so even after being ordered by hospital security to leave. Once the unruly individual was outside of the hospital, he repeatedly asked Police Officer Moye for his name and shield number; however, Police Officer Moye never provided such information. Although appearing simple at first blush, the facts of this case are complicated by Police Officer Moye's duty status at the time of the incident and whether the reach of the Civilian Complaint Review Board (CCRB) extends to uniformed members of the Department who are off-duty and working a Paid Detail.

According to the Revision Order No. 50 of 2024, uniformed members of the service performing off-duty Paid Detail employment are subject to numerous Department guidelines, including being "required to take proper police action."<sup>1</sup> There is no doubt that Police Officer Moye's removal of an unruly individual from hospital premises falls squarely within the scope of his official duties as a police officer as an on-duty uniformed member of the service would be required to undertake similar law enforcement action.

According to Title 38-A of the Rule of the City of New York, the CCRB is empowered to investigate abuse of authority claims that, *inter alia*, include "refusals to provide identifying information," by uniformed members of the Department.<sup>2</sup> The CCRB's ability to investigate such misconduct extends to off-duty conduct by uniformed members of the service as long as a three-prong test is met. Specifically, "a member of the Police Department's off-duty conduct may be the basis for initiating an investigation of past conduct in the course of official duties, "if said conduct could have resulted in Department discipline, could have had a "disruptive effect on the mission of the Police Department," and the Police Department has an interest in preventing said conduct."<sup>3</sup> In the underlying case, each of the three prongs is met thus subjecting Police Officer Moye's *off-duty* conduct to the reach of the CCRB.

---

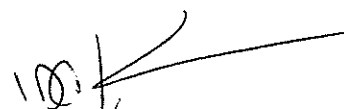
<sup>1</sup> See p. 3 of Revision Order No. 50 of 2024

<sup>2</sup> See Title 38-A; Civilian Complaint Review Board

<sup>3</sup> *Id*

Administrative Guide Procedure No. 304-11 provides that uniformed members of the service who interact with members of the public should “[c]ourteously and clearly state [their] rank, name, shield number and command, or otherwise provide them, to anyone who requests...to do so.”<sup>4</sup> It is undisputed that Police Officer Moye failed to comply with the aforementioned Administrative Guide procedure when he failed to provide his name and shield number to the requesting individual. As previously discussed, the CCRB is empowered to investigate such misconduct, even when it occurs while a uniformed member of the service is off-duty and working a Paid Detail.

Therefore, although he was off-duty and working a Paid Detail at the time of the incident, Police Officer Moye’s failure to provide his name and shield number is subject to the investigative reach of the CCRB. The undersigned believes that, based on the totality of the circumstances, the negotiated settlement is the appropriate outcome in this narrow case. **RECOMMEND APPROVAL.**

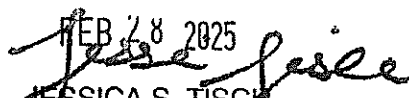


Tania L. Kinsella

**FIRST DEPUTY COMMISSIONER**

TIK/pk

**APPROVED**



FEB 28 2025  
JESSICA S. TISCH  
POLICE COMMISSIONER

---

<sup>4</sup> See p.1 of Administrative Guide Procedure No. 304-11